

Constitutional Foundations - The Foundation Track

Chapter F1.1 — From Zero: What Law Is, What a Constitution Is, Where India's
Came From, and How to Read It

Module	Foundation Layer — Module 1 — Indian Polity
Chapter	Chapter F1.1
Topic	Official syllabus head 3 — Indian Polity and Economy
Version	v1.0
Compiled	9 August 2026
Exam stage	Recruitment Test (RT)

NOTE · HOW TO USE THIS DOCUMENT

This chapter assumes you know NOTHING about law or the Constitution. It does not begin with the Constituent Assembly, because that would already assume you know what a constitution is and why a country needs one. It begins with what law itself is, builds the vocabulary you will need for every remaining chapter of this manual, and only then reaches the Constitution. If you already know what an Act, a Rule and a Notification are, and how they differ, you may skip to Section 3. If you do not, Sections 1 and 2 are the most important pages you will read in this entire manual, because every other module - and especially Labour Laws and Social Security - is built on them.

This is the FOUNDATION layer. It teaches from first principles and is deliberately slow. The COMPACT layer (the original Module 1 Chapter 1.1) covers the same ground in one fifth of the space and is your revision text for the final six weeks. Use Foundation to learn, Compact to revise. Priority ratings and study times are the author's Analytical Estimates, not official UPSC weightage.

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0. How the Foundation Track Works

You told me the earlier manual felt too thin to learn from. You were right. This is the layer that was missing.

The manual now has **two layers**, and they do different jobs. Using the wrong one at the wrong time is the single easiest way to waste your two hours a day.

Layer	What it does	When you use it
FOUNDATION (chapters numbered F)	Teaches from zero. Defines every term the first time it appears. Explains why a rule exists before telling you what it says. Worked examples. Graded practice from recognition up to exam standard	Now. Your first pass through any subject you do not already know
COMPACT (the original numbered chapters)	Targets and revises. Dense, evidence-led, built around what the paper has actually asked. Numbers tables, one-minute revisions, wall sheets	Final six weeks , and for every revision pass after your first

The two-layer system - use both, but not at the same time

START FROM ZERO · READ THIS BEFORE YOU READ ANYTHING ELSE

The Compact layer was written for a candidate who already knew the subjects and needed to know **where to aim**. That is a real need, but it is not **your** need yet. A compressed note is only compressible because it assumes a foundation. When you read a compressed note without that foundation, you do not learn the subject - you **memorise sentences you cannot reconstruct**, and memorised sentences collapse under a "which of the following is **not** correct" question, which is the format this paper uses most.

So the order is: **Foundation first, to understand. Compact second, to compress.** Never the other way round.

0.1 How this chapter is structured, and how to sit with it

Every Foundation chapter is cut into **study sessions of about 45 minutes**, because that matches the way you actually study - one hour in the morning, one in the evening. Each session ends with a **CHECK YOURSELF** box. Do not carry on to the next session until you can answer it without looking up.

STUDY SESSION · CHAPTER F1.1 - THE SIX SESSIONS

- Session 1** - What law is, and the ladder of legal instruments (Section 1). The most important session in the chapter
- Session 2** - What a constitution is and why a country needs one (Section 2)
- Session 3** - Where India's Constitution came from (Section 3)
- Session 4** - The architecture: Parts, Articles, Schedules, and how to read a citation (Section 4)
- Session 5** - The Preamble, word by word (Section 5), and the sources (Section 6)
- Session 6** - Basic structure, and the Lists that decide labour law (Sections 7 and 8)

Then the **graded practice** in Section 9 - 40 questions in three levels. Budget two full sessions for it. That is **eight sessions**, so roughly **four days** at your two hours a day.

1. Session 1 - Before Any Constitution: What Is Law? ★★★★★

You cannot learn labour law by memorising which section says what. You will forget it within a week. What holds it together is understanding what kind of thing a law is, and where each law sits in relation to the others.

Almost every candidate who fails this paper on the law-heavy blocks - and labour law plus social security is **18 of the 120 questions**, the single largest knowledge block - fails for the same reason. They learned Acts as lists of numbers instead of learning the **system** the numbers sit inside. So we start there, even though it will feel slow.

1.1 The State, and why it can tell you what to do

Strip away the vocabulary and a **State** is simply the arrangement by which a defined group of people, living in a defined territory, accept a common authority that can make binding decisions and enforce them.

Four elements. Learn them, because "State" is a technical word in this exam and it appears in places you would not expect:

- 1 **Population** - the people
- 2 **Territory** - the defined land
- 3 **Government** - the machinery that makes and enforces decisions
- 4 **Sovereignty** - the crucial one. The authority is **supreme internally** and **independent externally**. No higher power inside can overrule it, and no outside power commands it

Sovereignty is the element that makes law possible at all. A rule your housing society passes binds you only because the State allows the society to pass it. A rule the State passes binds you because there is nothing above the State to appeal to. That is the whole difference between a **rule** and a **law**.

JARGON DECODER · DO NOT CONFUSE THESE THREE USES OF THE WORD 'STATE'

This trips up beginners constantly, and the exam exploits it.

- 1 **State as a country** - "India is a sovereign State." The international-law sense
- 2 **State as a province** - "the State of Kerala." The federal-unit sense, which is what Part VI of the Constitution is about
- 3 **"State" as a defined legal term under Article 12** - a special, much wider meaning used only for Fundamental Rights. It includes the Government, Parliament, State legislatures, all local authorities, and **other authorities** - which is how **EPFO itself has been held to be "State"**

That third meaning is directly relevant to your job and is examined. It is dealt with fully in Chapter F1.3. For now, just register that the same three letters carry three different meanings, and the question will not tell you which one it means.

1.2 The ladder of legal instruments - the single most useful thing in this chapter

Here is where beginners lose marks without realising it. The paper asks things like "this provision finds place under which one of the following" or "is provided under the Third Schedule of the Factories Act" - and to answer, you must know that **a law is not one flat thing**. It is a **ladder**, and each rung is made by a different body with different authority.

Rung	Instrument	Who makes it	How to recognise it
1	The Constitution	The Constituent Assembly ; now amended by Parliament under Art 368	Referred to by Article number. "Article 43"
2	An Act (also called a statute)	Parliament or a State legislature	Has a name and a year . "Factories Act, 1948 ". Divided into Sections
3	Rules, Regulations, Schemes, Notifications - together called delegated or subordinate legislation	The Executive - a Ministry or a body - using power the Act itself granted	"framed under section 5 of the Act". Divided into Rules or paragraphs
4	Bye-laws, standing orders, circulars	Local bodies, or an establishment itself	Lowest rung. Binds narrowly

The ladder of legal instruments, highest authority first

The rule that governs the whole ladder: **a lower rung can never contradict a higher one**. If it does, it is struck down as **ultra vires** - beyond the power granted. An Act that violates the Constitution is void. A Rule that goes beyond what its parent Act permitted is void.

FROM YOUR OWN WORLD · YOU ALREADY KNOW THIS SYSTEM - IT IS THE RBI-TO-BRANCH CHAIN

You have spent your career inside exactly this ladder, just with different labels. Map it across and it will never confuse you again.

- 1 The **RBI Act, 1934** and the **Banking Regulation Act, 1949** are the **Acts** - rung 2. Passed by Parliament. You cannot argue with them
- 2 **RBI Master Directions and circulars** are rung 3 - **delegated legislation**. The RBI can issue them only because the Act empowered it to. If a Master Direction went beyond the Act, it could be challenged
- 3 **SBI's own internal circulars and your branch's instructions** are rung 4. They bind you as an employee, but they cannot override an RBI direction, and certainly not the Act

Now the same shape in your future job. The **EPF & MP Act, 1952** is rung 2. The **EPF Scheme**, the **Pension Scheme 1995** and the **EDLI Scheme 1976** are rung 3 - schemes **framed under** the Act, which is exactly why the Act is described as an **enabling** or **umbrella** Act. And this is why, when the EPF Scheme year appears to change from 1952 to 2026, **the parent Act is still the 1952 Act** - a scheme was replaced, not the statute. A beginner who does not hold the ladder in mind gets that question wrong every time.

BEGINNER MISTAKE · THE FOUR BEGINNER MISTAKES ON THE LADDER

- 1 **Confusing an Act with a Scheme**. The EPF & MP Act **1952** frames the EPF Scheme, the EPS **1995** and the EDLI **1976**. Three schemes, one Act. Asked directly in 2023
- 2 **Confusing a Section with a Rule**. Acts have **Sections**. Rules and Schemes have **Rules** or **paragraphs**. If a question says "section 7A", it is talking about the **Act**
- 3 **Thinking a Schedule is a separate law**. A **Schedule** is a list attached to the end of an Act or the Constitution, carrying detail that would clutter the main text - for example the **Third Schedule of the Factories Act, 1948** lists notifiable occupational diseases. It has the same force as the Act it is attached to
- 4 **Assuming "the law says" means only the Act**. Most of the detail you will administer as an APFC sits on **rung 3** - in Schemes and Rules, not in the Act

1.3 How a Bill becomes an Act - the vocabulary in sequence

A **Bill** is a proposal. It is not law. It becomes an **Act** only after it completes this journey, and the paper does test the vocabulary.

- 1 **Bill** is introduced in either House (a **Money Bill** only in the Lok Sabha)
- 2 **First reading** - introduction and, usually, publication. No debate on details
- 3 **Second reading** - the real work. General discussion, then clause-by-clause consideration, often after a **Select** or **Joint Committee** examines it
- 4 **Third reading** - a vote on the Bill as a whole. No further amendment of substance
- 5 It goes to the **other House**, which repeats the process
- 6 **Assent of the President** under Article 111. Only now is it an **Act**
- 7 **Commencement** - the date it comes into force, which may be **later** than the assent and may differ from provision to provision

IN PLAIN ENGLISH · WHY 'COMMENCEMENT' MATTERS MORE THAN YOU WOULD GUESS

An Act can exist and yet not yet apply. Parliament routinely passes an Act and leaves the Government to **notify** a commencement date later, section by section.

This is not a technicality for you - it is the central fact of the labour-law block. The **four Labour Codes were passed in 2019 and 2020** but were **brought into force on 21 November 2025**, with final Central Rules notified on **8 May 2026**. For five years they were law on the statute book and **not in operation**. Which is precisely why the 2023 paper was set on the old Acts, and your 2026 paper is the first sat under a fully operating Code regime. **Passed** and **in force** are two different questions, and this exam asks both.

1.4 The two great families of law

One more distinction before we reach the Constitution, because it explains why the same wrong act can produce two different proceedings.

	Criminal law	Civil law
What it is about	An offence against society	A dispute about rights and duties between parties
Who brings the case	The State prosecutes	The aggrieved person sues
What is at stake	Punishment - fine, imprisonment	A remedy - compensation, recovery, an injunction
Standard of proof	Beyond reasonable doubt - very high	Preponderance of probabilities - the balance
Example from your future work	Prosecution of an employer for failing to pay contributions	Recovery proceedings to get the money in

And a third category you must know because it **is** your job: **quasi-judicial** action. This is the Executive acting like a court. An officer who must hear both sides, weigh evidence and pass a reasoned, appealable order is acting quasi-judicially even though he is not a judge.

WHY THIS EXISTS · WHY 'QUASI-JUDICIAL' IS THE SINGLE MOST IMPORTANT PHRASE IN YOUR FUTURE JOB DESCRIPTION

As an **Assistant Provident Fund Commissioner** you will conduct inquiries under **Section 7A** of the EPF & MP Act to determine how much an employer owes. You are not a judge and it is not a criminal trial. But you must issue notice, hear the employer, consider records, and pass a **reasoned order** which can be **appealed**. That is a quasi-judicial function.

Every element there traces back to constitutional law: the duty to hear the other side is **natural justice**, which the courts read into **Article 14** and **Article 21**; the duty to give reasons makes review possible; and the appeal route ends, ultimately, in the **writ jurisdiction** of the High Court under **Article 226**.

This is the answer to the question a beginner always asks - "**why must a Provident Fund officer study the Constitution?**" Because the powers you will exercise are constitutional powers delegated down the ladder, and their limits are constitutional limits.

CHECK YOURSELF · SESSION 1

Answer without looking back. If you miss more than one, re-read Section 1 before continuing.

- 1 Name the four elements of a State, and say which one makes law possible
- 2 Put these in order of authority: a Rule, the Constitution, a bye-law, an Act
- 3 The EPF & MP Act 1952 frames how many schemes, and what does that make the Act - enabling, or self-contained?
- 4 What does **ultra vires** mean, and which direction does the invalidity run?
- 5 What is the difference between an Act being **passed** and being **in force**? Give the labour-law example
- 6 You hear an employer, weigh his wage records and pass an appealable order. What kind of function is that called?

2. Session 2 - What Is a Constitution, and Why Does a Country Need One? ★★★★★

Now that you know what a law is, the Constitution becomes easy to place. It is simply the law that makes all the other laws possible.

2.1 The definition, built up rather than stated

A **constitution** is the **fundamental law** of a State. Three ideas are packed into that phrase, and it is worth taking them one at a time.

- 1 **It is law**, not a statement of ideals. It is enforceable in court. If Parliament passes an Act that conflicts with it, the court will strike the Act down
- 2 **It is fundamental** - it sits above every other law. This is why we drew the ladder first
- 3 **It is constitutive** - it *creates* the institutions it then regulates. Before the Constitution commenced there was no Parliament of India, no Supreme Court of India, no President. Article 79 does not describe Parliament; it **brings Parliament into existence**

That third point is the one beginners miss, and it makes a whole category of exam question intelligible.

WHY THIS EXISTS · WHAT A CONSTITUTION IS ACTUALLY FOR - FOUR JOBS

- 1 **It establishes the organs of the State** and says who holds which power - legislature, executive, judiciary
 - 2 **It distributes power**, in two directions at once. **Horizontally** among those three organs (separation of powers), and **vertically** between the Union and the States (federalism)
 - 3 **It limits power** by guaranteeing rights the State may not invade. This is what **Part III** does
 - 4 **It states the goals** the State should pursue. This is what the **Preamble** and **Part IV** do
- Hold on to job number three, because it produces the most counter-intuitive fact in the whole subject: **most of the Constitution is not a grant of power to the Government. It is a restriction on it.** A beginner reads Part III as a list of things citizens may do. A lawyer reads it as a list of things the State may **not** do. The second reading is the correct one, and the exam is set by people who read it that way.

2.2 Written and unwritten, rigid and flexible

Two classification pairs. Both are directly examinable and both matter for understanding India's choices.

Distinction	What it means	Examples
Written	Set out in one authoritative document, deliberately enacted at a moment in time	India , the USA
Unwritten	No single document. Grown from statutes, judicial decisions and conventions over centuries	The United Kingdom
Rigid	Amendment needs a special procedure - a larger majority, or State ratification	The USA - notoriously hard to amend
Flexible	Amended like an ordinary law	The UK - Parliament can change it by simple majority

India is **written**, and **partly rigid and partly flexible** - which is the answer the exam wants. Article 368 provides **three** different amendment routes of increasing difficulty, so the rigidity depends on **what** you are amending. That graded design is examined and is covered in Section 7.

IN PLAIN ENGLISH · WHY 'PARTLY RIGID, PARTLY FLEXIBLE' IS NOT A FUDGE

It is a deliberate engineering choice, and as an engineer you will recognise the logic. You do not use the same fastener for a nameplate and for a load-bearing joint.

The framers graded the difficulty of amendment to the importance of the provision. Adjusting a State boundary is easy. Changing the distribution of power between the Union and the States requires the States themselves to agree. The design matches the resistance to the stakes.

2.3 Constitutionalism - the idea behind the document

One short concept that separates candidates who understand the subject from those who have memorised it.

Having a constitution is not the same as **constitutionalism**. Constitutionalism means government **limited** by law - that those in power genuinely accept restraints they cannot themselves remove. Many States have impressive constitutional documents and no constitutionalism at all.

The mechanisms that turn a document into real constitutionalism are worth listing, because each one is a separate exam topic later:

- **Judicial review** - courts can strike down unconstitutional laws
- **Fundamental Rights** that are enforceable, not merely declared
- **Separation of powers**, so no single organ holds everything
- **Federalism**, so power is divided territorially as well
- **Free and periodic elections**, and an independent Election Commission
- **The rule of law** - that the Government itself is subject to the ordinary law
- **The basic structure doctrine**, which puts some things beyond even the amending power

CHECK YOURSELF · SESSION 2

- 1 Give the three-part definition of a constitution. Which part explains why Parliament could not exist before 1950?
- 2 What are the four jobs a constitution does? Which of them describes Part III?
- 3 Classify the Indian Constitution on both pairs, and justify the second classification in one sentence
- 4 Explain the difference between having a constitution and constitutionalism
- 5 Name any four mechanisms of constitutionalism

3. Session 3 - Where India's Constitution Came From ★★★★★

Now the history. But learn it as a chain of causes, not a list of dates - because that is how the questions are built.

3.1 Why there is so much British statute in an Indian Constitution

Beginners are puzzled that a document adopted in 1949 draws so heavily on colonial legislation. The reason is simple and worth stating plainly: **India did not start from a blank sheet.** By 1947 the subcontinent had been governed under written statutes for over 150 years. The Constituent Assembly kept the machinery that worked, discarded what was designed for imperial control, and added what a free democracy needs.

So roughly **two-thirds of the Government of India Act, 1935** flows into the Constitution. That is not a lack of imagination. It is what allowed a new republic to function from day one.

Year	Statute	What it contributed that survived
1773	Regulating Act	First British parliamentary control over the Company. Created the Governor-General of Bengal and a Supreme Court at Calcutta
1784	Pitt's India Act	Separated commerce from governance. Board of Control
1793 to 1853	Charter Acts	1813 state responsibility for education; 1833 Governor-General of India , first Law Commission ; 1853 first separation of legislative from executive functions, and open competition for the civil service
1858	Government of India Act	End of Company rule. Crown takes over. Secretary of State for India . Governor-General becomes Viceroy
1861	Indian Councils Act	Beginning of legislative devolution and the portfolio system . Indians first associated with law-making
1892	Indian Councils Act	Enlarged councils. Indirect elections appear, though not named as such
1909	Morley-Minto Reforms	Separate electorates for Muslims - communal representation. First Indian in the Executive Council
1919	Montagu-Chelmsford Reforms	Dyarchy in the provinces. Separated central and provincial subject lists. Bicameralism and direct election introduced
1935	Government of India Act	The big one. Federation, three lists, provincial autonomy , a Federal Court , abolition of dyarchy in provinces. Roughly two-thirds of it carries into the Constitution
1947	Indian Independence Act	Ended British paramountcy. Made the Constituent Assembly a sovereign body and the legislature of the new Dominion

The chain of colonial constitutional statutes - learn the CONTRIBUTION, not just the year

MEMORY TECHNIQUE · HOLDING THE CHAIN IN ORDER

Do not memorise ten dates as ten facts. Memorise the **story in five beats**, and the dates attach themselves.

- 1 **Control the Company** - 1773, 1784, 1793 to 1853
- 2 **Replace the Company with the Crown** - 1858
- 3 **Let Indians into law-making, slowly** - 1861, 1892, 1909
- 4 **Give provinces real power, in stages** - 1919 dyarchy, then 1935 provincial autonomy
- 5 **Hand over sovereignty** - 1947

For the three most examined: **1909 separate electorates, 1919 dyarchy, 1935 federation and three lists**. If you remember nothing else from this table, remember those three pairings.

3.2 The Constituent Assembly - how it was actually made

This is examined directly. In 2023 the paper asked which plan the Assembly was constituted under.

- 1 Constituted under the **Cabinet Mission Plan, 1946**. Not the Cripps Mission, not the Mountbatten Plan - a favourite distractor set
- 2 Members were **indirectly elected** by the **provincial legislative assemblies**, using proportional representation by single transferable vote. So it was **not** directly elected by the people, and this is the basis of the standard criticism that it was not fully representative
- 3 Seats for princely States were filled by **nomination** by the rulers
- 4 Total strength was to be **389**. After Partition it became **299**
- 5 **First meeting: 9 December 1946**. **Sachchidananda Sinha** was temporary chairman, as the oldest member
- 6 **Dr Rajendra Prasad** was elected **permanent Chairman** on 11 December 1946
- 7 **B. R. Ambedkar** chaired the **Drafting Committee**, constituted on 29 August 1947, with seven members
- 8 **Sir B. N. Rau** was **Constitutional Adviser** - a much-used distractor against Ambedkar, so keep the two roles distinct
- 9 The **Objectives Resolution** was moved by **Jawaharlal Nehru** on 13 December 1946 and adopted 22 January 1947. It became the basis of the **Preamble**

MUST MASTER · THE THREE DATES THAT CARRY THE MOST MARKS

- 1 **26 November 1949** - the Constitution was **adopted**, and some provisions (citizenship, elections, provisional Parliament) came into force **at once**
- 2 **26 January 1950** - the Constitution **commenced** in full. The Republic begins
- 3 **2 years, 11 months and 18 days** - the time taken

Why 26 January and not 26 November? Because on **26 January 1930** the Indian National Congress had first publicly observed **Purna Swaraj** day, following the **Lahore session of December 1929**. The date was chosen to honour that pledge. This "why" is asked as often as the date itself.

BEGINNER MISTAKE · ADOPTED, COMMENCED, ENACTED - THREE WORDS THE EXAM PLAYS WITH

A beginner treats these as synonyms. They are not.

- 1 **Enacted and adopted** - 26 November 1949. The Assembly finished its work and gave the document to the nation. The Preamble's own words are "adopt, enact and give to ourselves"
- 2 **Commenced** - 26 January 1950. It came into **force**

Notice this is exactly the **passed versus in force** distinction from Session 1, applied to the Constitution itself. The same idea keeps returning, which is why Session 1 came first.

CHECK YOURSELF · SESSION 3

- 1 Under which plan was the Constituent Assembly constituted, and how were members chosen?
- 2 Who chaired the first sitting, and who became permanent Chairman?
- 3 Distinguish the roles of Ambedkar and B. N. Rau
- 4 Give the adoption date, the commencement date, and the time taken
- 5 Why was 26 January chosen? What happened on that date in 1930?
- 6 Which single colonial statute contributed most to the Constitution, and name three things it contributed

4. Session 4 - How to Read the Constitution ★★★★★

A beginner opens the Constitution, sees "Article 246 read with the Seventh Schedule" and closes it again. Ten minutes on the vocabulary of structure removes that barrier permanently.

4.1 The three structural words

- 1 An **Article** is the basic numbered unit of the Constitution. It is the equivalent of a **section** in an Act. Articles are numbered **1 to 395** in the original text, but many have been inserted since using letters - **21A, 338B, 371J** - so the **count** of articles is higher than the highest number. There are now about **448**
- 2 A **Part** is a themed group of Articles. **Part III** is Fundamental Rights, **Part IV** is Directive Principles. There are now **25** Parts. When you see a Part number, you should immediately know the subject - that mapping is the single most useful thing in this section
- 3 A **Schedule** is a list or table attached at the end, holding detail that would clog the main text. There are **12**

JARGON DECODER · READING A CITATION - WORKED SLOWLY

Take the citation "**Article 246 read with the Seventh Schedule**", which is the foundation of the entire labour-law block.

- 1 **Article 246** is in **Part XI**, which deals with relations between the Union and the States. The Article says **which** legislature may make law on which **List**
- 2 It cannot itself contain the lists - they run to hundreds of entries. So the lists are placed in the **Seventh Schedule**
- 3 "**Read with**" simply means the two must be used together: the Article supplies the rule, the Schedule supplies the content

So: **Article 246 + Seventh Schedule = who can legislate on what.** And **Entry 22, 23 and 24 of the Concurrent List** in that Schedule are the entries under which **every labour law you will administer** was enacted. That is the connection between this chapter and your job.

4.2 The map of Parts - learn this and half of polity becomes navigable

You do not need all 25 at first. Learn these, which is where the questions live.

Part	Subject	Articles	Why it matters to you
I	The Union and its territory	1 to 4	Art 1 "Union of States"; how States are reorganised
II	Citizenship	5 to 11	Who is a citizen; Parliament's power over it
III	Fundamental Rights	12 to 35	The limits on State power. Art 12 defines "State" - and covers EPFO
IV	Directive Principles	36 to 51	Art 39, 41, 42, 43 are the constitutional source of labour and social security law. Your subject
IV-A	Fundamental Duties	51A	Added by the 42nd Amendment, 1976
V	The Union	52 to 151	President, Parliament, Supreme Court, CAG
VI	The States	152 to 237	Governor, State legislature, High Courts

Part	Subject	Articles	Why it matters to you
IX / IX-A	Panchayats / Municipalities	243 to 243ZG	73rd and 74th Amendments. Art 243-I and 243-Y State Finance Commission
XI	Union-State relations	245 to 263	Art 246 and the three Lists. Art 254 repugnancy
XII	Finance, property, contracts	264 to 300A	Art 266 Consolidated Fund, Art 280 Finance Commission
XIV	Services and Public Service Commissions	308 to 323	You will be a public servant governed by this Part
XX	Amendment	368	The amending power, and its limits

The Parts you must be able to place instantly

MEMORY TECHNIQUE · THE SCHEDULES, WITH A WORKING MNEMONIC

Twelve Schedules. The ones actually asked are **First, Second, Seventh, Eighth, Ninth, Tenth, Eleventh, Twelfth**.

- 1 **1st** - States and Union Territories
- 2 **2nd** - **Salaries** and emoluments of high offices (President, Governors, Judges, CAG)
- 3 **3rd** - **Forms of oath** or affirmation
- 4 **4th** - Allocation of **Rajya Sabha** seats
- 5 **5th** - Administration of **Scheduled Areas** and Scheduled Tribes
- 6 **6th** - Tribal areas in **Assam, Meghalaya, Tripura, Mizoram**
- 7 **7th** - **The three Lists**. The one that matters most to you
- 8 **8th** - **Languages**, 22 of them
- 9 **9th** - Laws immunised from challenge (land reform). Added by the **1st Amendment, 1951**; since **I. R. Coelho (2007)** even these are testable against the basic structure
- 10 **10th** - **Anti-defection**
- 11 **11th** - **Panchayat** subjects, **29** items
- 12 **12th** - **Municipal** subjects, **18** items

For the last two, remember "**Panchayats 29, Municipalities 18**" - and note the Eleventh comes with the 73rd Amendment, the Twelfth with the 74th. The exam pairs them.

CHECK YOURSELF · SESSION 4

- 1 What is the difference between an Article, a Part and a Schedule?
- 2 Which Part holds Fundamental Rights, and which holds Directive Principles? Give the Article ranges
- 3 What does "Article 246 read with the Seventh Schedule" mean, in your own words?
- 4 Which Schedule holds the three Lists? Which holds anti-defection? Which holds languages?
- 5 Panchayat subjects and Municipal subjects - which Schedule and how many items each?

5. Session 5 - The Preamble, Word by Word ★★★★★

The Preamble is 85 words long and produces a disproportionate share of questions, because every one of its key words is a technical term.

5.1 The text, and how to hold it

> WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens: **JUSTICE**, social, economic and political; **LIBERTY** of thought, expression, belief, faith and worship; **EQUALITY** of status and of opportunity; and to promote among them all **FRATERNITY** assuring the **dignity of the individual** and the **unity and integrity of the Nation**; IN OUR CONSTITUENT ASSEMBLY this **twenty-sixth day of November, 1949**, do hereby **ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION**.

Three things to notice immediately, because each is examined:

- 1 It opens with "**We, the People of India**" - the Constitution derives its authority from the people, not from the British Parliament. This is the textual basis of **popular sovereignty**
- 2 It carries the date **26 November 1949** - the date of **adoption**, not commencement
- 3 It ends with "**adopt, enact and give to ourselves**" - the people are simultaneously the author and the recipient

5.2 The five descriptors, defined properly

Word	What it actually means in constitutional law
Sovereign	India is internally supreme and externally independent . It takes orders from no external authority. Membership of the Commonwealth or the UN does not qualify it
Socialist	Added by the 42nd Amendment, 1976 . India follows democratic socialism - a mixed economy where public and private sectors coexist - not the communist model of total State ownership. The courts have read it as requiring the elimination of inequality of income, status and standard of living
Secular	Added by the 42nd Amendment, 1976 . India has no State religion and treats all faiths equally. Note carefully: it is not hostility to religion, and not the strict wall-of-separation model of the USA. It is equal respect - the State may regulate and even assist religions, provided it does so without discrimination. Articles 25 to 28 give it effect
Democratic	Authority rests on the will of the people , expressed through periodic free elections on universal adult suffrage . Understood widely - political, social and economic democracy
Republic	The head of State is elected , directly or indirectly, and holds office for a fixed term. No hereditary monarch. This is the word that distinguishes India from the United Kingdom, which is also democratic but not a republic

Each word is a technical term - beginners lose marks by reading them loosely

COMMON UPSC TRAP · THE THREE MOST COMMON PREAMBLE TRAPS

- 1 **The 42nd Amendment, 1976 added THREE words - Socialist, Secular and Integrity**. Not two, not four. "Integrity" went into the phrase "unity and integrity of the Nation". This precise count was asked in the paper
- 2 **"Democratic" and "Republic" were in the original text**. Only Socialist and Secular were added. A very common confusion
- 3 **The Preamble has been amended exactly ONCE** - by the 42nd Amendment. Not twice, not never

IN PLAIN ENGLISH · JUSTICE, LIBERTY, EQUALITY, FRATERNITY - THE ORDER IS DELIBERATE

These four are not a random list. Ambedkar took them from the **French Revolution**, and the Constitution arranges them in a specific logic.

- 1 **Justice** comes first, and in three dimensions - **social, economic and political**. Social justice ranks before political justice, which was a radical ordering for 1949
- 2 **Liberty** - of thought, expression, belief, faith and worship. Five items, and it is liberty **of** these things, not freedom **from** the State in the absolute American sense
- 3 **Equality** - of **status** and of **opportunity**. Two kinds. Not equality of outcome
- 4 **Fraternity** - assuring the **dignity of the individual** and the **unity and integrity of the Nation**

Ambedkar's own explanation is the best mnemonic: without **fraternity**, liberty and equality become "a coat of paint". The four are a sequence, not a menu.

5.3 Is the Preamble part of the Constitution? The two-case story

This is a favourite, and it has a clean narrative shape.

- 1 In **Berubari Union (1960)** the Supreme Court said the Preamble is a **key to the mind of the makers** but is **not part** of the Constitution
- 2 In **Kesavananda Bharati (1973)** the Court **reversed** that position: the Preamble **is** part of the Constitution
- 3 It follows that it **can be amended** under Article 368 - which is exactly what the 42nd Amendment did in 1976 - but **not** so as to destroy the **basic structure**

Two further points that beginners get wrong:

- The Preamble is **not enforceable in a court**. You cannot sue on the Preamble alone. It is not "justiciable"
- But it **is** used as an **aid to interpretation** when an Article is ambiguous, and it supplies the values the basic structure doctrine draws on

CHECK YOURSELF · SESSION 5

- 1 Recite the five descriptors in order. Which three words did the 42nd Amendment add?
- 2 Define "secular" as Indian constitutional law understands it, and say how it differs from the American model
- 3 Which word distinguishes India from the UK, and why?
- 4 Name the two cases on whether the Preamble is part of the Constitution, and the outcome of each
- 5 Is the Preamble enforceable? Is it amendable? Answer both, with the qualification

6. Sources of the Constitution ★★★★★

The paper likes to ask which country a feature was borrowed from. Learn it as a table, but learn the logic - each borrowing solved a specific problem.

Source	What India took
Government of India Act, 1935	The largest single source - roughly two-thirds. Federal scheme, office of Governor, judiciary, public service commissions, emergency provisions, administrative details
United Kingdom	Parliamentary government, rule of law, single citizenship, bicameralism , the Speaker , writs, legislative procedure, cabinet system
United States	Fundamental Rights, judicial review, independence of the judiciary, impeachment of the President, removal of judges, the Vice-President, preamble as a device
Ireland	Directive Principles of State Policy, nomination of members to the Rajya Sabha, method of electing the President
Canada	A federation with a strong Centre, residuary powers with the Union, appointment of State Governors, advisory jurisdiction of the Supreme Court
Australia	The Concurrent List , freedom of trade, commerce and intercourse, joint sitting of the two Houses
Germany (Weimar)	Suspension of Fundamental Rights during emergency
Soviet Union (USSR)	Fundamental Duties , and the ideal of justice - social, economic and political - in the Preamble
France	Republic , and the ideals of Liberty, Equality and Fraternity
South Africa	Procedure for amendment , and election of Rajya Sabha members
Japan	Procedure established by law in Article 21

Borrowed features - the ones actually asked

MEMORY TECHNIQUE · THE THREE PAIRS THAT ARE ALWAYS CONFUSED

- Directive Principles = IRELAND.** Fundamental Rights = USA. **Fundamental Duties = USSR.** Three different countries for three similar-sounding things. This is the most examined trio in the table - the 2015 paper used exactly this confusion
- Concurrent List = AUSTRALIA**, not Canada. But **residuary powers with the Centre = CANADA**, not Australia. Remember it as: Canada gave us the **strong Centre**, Australia gave us the **shared list**
- Liberty, Equality, Fraternity = FRANCE**, but **Justice = USSR.** The Preamble's four ideals come from **two** different sources

7. Session 6a - Amendment and the Basic Structure Doctrine ★★★★★

This is the most intellectually demanding topic in the chapter, and the one where a beginner most needs the story rather than the holding.

7.1 First, what "amendment" means

An **amendment** is a formal change to the text of the Constitution itself, made under **Article 368**. It is not an ordinary Act, and it is not judicial interpretation. Amendments are numbered and named - the **42nd Amendment Act, 1976**, the **73rd Amendment Act, 1992**.

Article 368 gives **three routes**, and knowing which route applies to what is examined:

Route	Majority required	Used for
Simple majority	Ordinary law majority. Technically outside Art 368	Admission of new States, creation or abolition of State legislative councils, citizenship, salaries, Schedules 5 and 6
Special majority	Two-thirds of those present and voting , and a majority of the total membership of each House	Fundamental Rights, Directive Principles, most of the Constitution
Special majority plus State ratification	As above, plus the legislatures of not less than one-half of the States	Federal provisions - election of the President, Union-State distribution of powers, the Seventh Schedule , representation of States in Parliament, Article 368 itself

BEGINNER MISTAKE · TWO TRAPS IN THE AMENDMENT PROCEDURE

- 1 **State ratification needs one-HALF of the States, not two-thirds.** And there is **no time limit** within which States must ratify
- 2 **The President MUST give assent** to a Constitution Amendment Bill. Under Article 368 he has **no** power to withhold assent or return it - unlike an ordinary Bill under Article 111. This was made explicit by the **24th Amendment, 1971**

7.2 The story, in sequence - why the doctrine had to be invented

The whole doctrine grows out of one question: **can Parliament use its amending power to take away Fundamental Rights?** Follow the sequence and you will never need to memorise it.

- 1 **Shankari Prasad (1951)** - the First Amendment is challenged. Court: an amendment is **not** "law" within Article 13, so Parliament **may** abridge Fundamental Rights
- 2 **Sajjan Singh (1965)** - the same conclusion is reaffirmed, but with doubts appearing in dissents
- 3 **Golaknath (1967)** - the Court **reverses** itself. Fundamental Rights are **transcendental and immutable**; Parliament **cannot** abridge them at all. This creates a crisis, because it means even a benign social reform touching property is impossible
- 4 **24th Amendment (1971)** - Parliament strikes back. It amends Articles 13 and 368 to declare expressly that its amending power **does** extend to Fundamental Rights, and that the President **must** assent
- 5 **Kesavananda Bharati (1973)** - the great compromise, by the narrowest of margins, **7 to 6**, in a bench of **13**. The Court **upholds** the 24th Amendment, so Parliament **can** amend Fundamental Rights - **but** it **cannot destroy or damage the BASIC STRUCTURE** of the Constitution. The doctrine is born
- 6 **Indira Nehru Gandhi v Raj Narain (1975)** - the doctrine is **applied** for the first time to strike down a constitutional amendment, one which sought to place the Prime Minister's election beyond judicial scrutiny. **Free and fair elections** and **judicial review** are basic features
- 7 **Minerva Mills (1980)** - strikes down parts of the 42nd Amendment which had tried to make the amending power **unlimited** and to bar judicial review of amendments. **Limited amending power** and **judicial review** are themselves basic features
- 8 **Waman Rao (1981)** - fixes the **cut-off date**: laws placed in the Ninth Schedule **before 24 April 1973**, the date of Kesavananda, are protected; those added **after** can be tested
- 9 **I. R. Coelho (2007)** - confirms it. Even Ninth Schedule laws added after that date are open to challenge if they violate the basic structure

WHY THIS EXISTS · WHY THE COMPROMISE WAS NECESSARY - THE POINT MOST CANDIDATES MISS

Golaknath and the 24th Amendment were two absolute positions, and both were unworkable.

If **Parliament can amend anything**, then a temporary two-thirds majority could abolish elections, or the courts, or federalism - and the Constitution would offer no protection at the exact moment protection matters most.

If **Parliament can amend nothing** in Part III, then the Constitution freezes in 1950 and no land reform or social legislation can proceed. A constitution that cannot adapt is a constitution that will eventually be discarded.

The basic structure doctrine is the middle path: **the Constitution is amendable, but not destructible**. That single sentence is the entire doctrine, and it is worth more in an interview than a list of thirteen cases.

KNOW · WHAT HAS BEEN HELD TO BE PART OF THE BASIC STRUCTURE

There is **no closed list** - and that is itself an examinable point, because the Court has deliberately kept it open, case by case. Features recognised so far include:

- **Supremacy of the Constitution**
- **Republican and democratic** form of government
- **Secular** character
- **Separation of powers** among the three organs
- **Federal** character
- **Judicial review**, and access to the Supreme Court under **Article 32**
- **Free and fair elections**
- **Rule of law**
- **Independence of the judiciary**
- **Limited amending power** of Parliament itself
- The **essence** of Fundamental Rights, and the **balance** between Fundamental Rights and Directive Principles

8. Session 6b - Federalism and the Lists That Decide Labour Law ★★★★★

This section exists because it is the bridge from polity to your actual subject. Do not skip it, even though it looks like a detour.

8.1 What federalism is, and India's particular version

A **federal** system divides power between a central government and regional governments, so that **each is supreme in its own sphere** and neither is merely the agent of the other. The alternative is a **unitary** system, where all power rests centrally and regions exercise only what is delegated.

India is described as **federal in structure but unitary in spirit** - or, in the phrase the exam prefers, a system with a **strong centralising bias**. The evidence for both halves is worth knowing:

Federal features	Unitary or centralising features
Dual polity - Union and States	Single citizenship
Written Constitution	Single unified judiciary
Division of powers - three Lists	Residuary powers with the Union
Supremacy of the Constitution	Governor appointed by the Centre
Rigid amendment for federal provisions	All-India Services serving both
Independent judiciary to umpire	Emergency provisions that can turn it unitary
Bicameral Parliament	Parliament can alter State boundaries by simple majority

Note the very first Article: **Article 1 says "India, that is Bharat, shall be a Union of States"** - deliberately **not** "Federation". Ambedkar explained the choice: the Union is **not the result of an agreement** among States, and therefore **no State has the right to secede**. That reasoning is examined.

8.2 The three Lists - and the entries that create your job

Article 246 read with the **Seventh Schedule** distributes legislative power across three Lists.

List	Entries	Who legislates	Contents and examples
Union	97	Parliament alone	Defence, foreign affairs, railways, banking, currency, atomic energy
State	66	State legislatures alone	Police, public health, agriculture, local government
Concurrent	47	Both	Labour , education, criminal law, marriage, bankruptcy, trade unions

Now the entries that matter to you more than any others in the Constitution:

MUST MASTER · THE FOUR CONCURRENT LIST ENTRIES THAT PRODUCED EVERY LAW YOU WILL ADMINISTER

Labour is on the **Concurrent List**. That single fact explains the shape of the whole labour-law block.

- 1 **Entry 22 - Trade unions**; industrial and labour disputes
- 2 **Entry 23 - Social security and social insurance**; employment and unemployment
- 3 **Entry 24 - Welfare of labour**, including conditions of work, provident funds, employers' liability, workmen's compensation, invalidity and old age pensions, and maternity benefit
- 4 **Entry 36 - Factories**. (**Entry 55** of the Union List covers regulation of labour and safety in **mines** and oilfields)

Read Entry 24 again. "Provident funds", "employers' liability", "old age pensions", "maternity benefit". That entry is the constitutional authority for the **EPF & MP Act 1952**, the **Employees' Compensation Act 1923**, the **Maternity Benefit Act 1961** and the **Payment of Gratuity Act 1972**. **Entry 23** is the authority for the **ESI Act 1948** and the **Code on Social Security 2020**.

The post you are applying for exists because of Entry 24 of the Concurrent List. That is not a rhetorical flourish - it is the legal chain, and an interview board will be impressed that you can state it.

WHY THIS EXISTS · WHY 'CONCURRENT' EXPLAINS THREE THINGS YOU WOULD OTHERWISE HAVE TO MEMORISE

- 1 **Why both the Centre and the States make labour law.** Both are competent. This is why every major labour Act has **Central Rules** and separate **State Rules**, and why the same Act can operate slightly differently across States
- 2 **Why there is a repugnancy rule.** If both may legislate, they will eventually conflict. **Article 254** resolves it: Central law prevails, and the State law is void to the extent of the repugnancy - **unless** the State law was **reserved for and received the President's assent**, in which case the State law prevails in that State
- 3 **Why the Labour Codes needed such a long transition.** Consolidating **29 central Acts** into four Codes required fresh Central Rules **and** for States to align their own rules. Which is exactly why the Codes were passed in 2019 and 2020 but only came into force on **21 November 2025**, with final Central Rules on **8 May 2026**

JARGON DECODER · DOCTRINES YOU WILL MEET IN THIS AREA - SHORT DEFINITIONS

- **Doctrine of pith and substance** - to decide which List a law belongs to, look at its **true nature and character** as a whole, not at incidental encroachment
- **Doctrine of colourable legislation** - a legislature cannot do indirectly what it cannot do directly. What cannot be done openly cannot be done under a disguise
- **Doctrine of repugnancy** - Article 254, above
- **Residuary powers** - **Article 248**. Anything not in any of the three Lists belongs to **Parliament**. Borrowed from Canada
- **Doctrine of territorial nexus** - a State law can have extra-territorial operation if there is a sufficient connection with the State

CHECK YOURSELF · SESSION 6

- 1 State the basic structure doctrine in one sentence. Which case created it, and by what margin?
- 2 Which case first used it to strike down an amendment? Which case fixed the Ninth Schedule cut-off date, and what is that date?
- 3 Give the three amendment routes and one example of each. How many States must ratify, and is there a time limit?
- 4 Why does Article 1 say "Union of States" rather than "Federation"?
- 5 Which List is labour on? Give the three key entry numbers and what each covers
- 6 State Article 254 in your own words, including the exception

NOTE · AN HONEST NOTE ON THE ENTRY COUNTS

The three Lists **as originally enacted** contained **97 Union, 66 State and 47 Concurrent** entries, and those are the figures most commonly keyed in answer sets. Because entries have since been added, deleted and renumbered by amendment, **present-day counts differ between sources** - Union is variously given as 98 or 100, State as 59 or 61, Concurrent as 52. I am not going to print a present-day figure I cannot verify against the bare Seventh Schedule.

In the exam: if the question says "originally", answer **97 / 66 / 47**. If it gives no qualifier, **97 / 66 / 47** is still the safest choice, because that is the figure the standard sources carry. What is **never** in doubt, and is what actually gets asked, is that **Concurrent has the fewest** and that **labour sits on the Concurrent List**.

9. Graded Practice - 40 Questions ★★★★★

The three levels exist for a reason. Do not jump to Level 3 - if you cannot do Level 1 cold, Level 3 will only teach you that you do not know the material, which you already know.

How to use this section. Attempt each level in one sitting, write your answers down before checking, and mark every wrong answer into your error log. Level 1 tests **recognition** - can you pick the right name. Level 2 tests **understanding** - can you explain a concept. Level 3 is set at **actual RT difficulty**, using the exact formats the paper uses: "not correct", statement-based, matching and chronological sequence.

9.1 Level 1 - Recognition

Q. 1. The Constituent Assembly of India was constituted under which plan?

(a) Cripps Mission, 1942 (b) August Offer, 1940 (c) **Cabinet Mission Plan, 1946** (d) Mountbatten Plan, 1947

Q. 2. The Constitution of India was adopted by the Constituent Assembly on

(a) 26 January 1950 (b) 26 November 1949 (c) 15 August 1947 (d) 9 December 1946

Q. 3. The Constitution of India came into force on

(a) 26 November 1949 (b) 15 August 1947 (c) 26 January 1930 (d) 26 January 1950

Q. 4. How long did the Constituent Assembly take to complete the Constitution?

(a) 2 years, 11 months and 18 days (b) 3 years, 1 month and 8 days (c) 2 years, 6 months and 20 days (d) 4 years exactly

Q. 5. Who presided over the first sitting of the Constituent Assembly on 9 December 1946?

(a) Dr Rajendra Prasad (b) Dr B. R. Ambedkar (c) Sachchidananda Sinha (d) Jawaharlal Nehru

Q. 6. Who was the Constitutional Adviser to the Constituent Assembly?

(a) Dr B. R. Ambedkar (b) Sir B. N. Rau (c) K. M. Munshi (d) Alladi Krishnaswamy Ayyar

Q. 7. The Objectives Resolution, which later formed the basis of the Preamble, was moved by

(a) Dr Rajendra Prasad (b) Sardar Patel (c) Jawaharlal Nehru (d) Dr B. R. Ambedkar

Q. 8. How many words were inserted into the Preamble by the 42nd Amendment Act, 1976?

(a) One (b) Two (c) Three (d) Four

Q. 9. The Directive Principles of State Policy were borrowed from the Constitution of

(a) the Soviet Union (b) Ireland (c) the United States (d) Canada

Q. 10. Fundamental Duties were incorporated on the model of

(a) Ireland (b) the United States (c) the Soviet Union (d) Australia

Q. 11. The Concurrent List as a device was borrowed from

(a) Canada (b) Australia (c) the United States (d) the United Kingdom

Q. 12. Which Schedule of the Constitution contains the Union, State and Concurrent Lists?

(a) Fifth Schedule (b) Sixth Schedule (c) Seventh Schedule (d) Eighth Schedule

Q. 13. Anti-defection provisions are contained in which Schedule?

(a) Ninth (b) Tenth (c) Eleventh (d) Twelfth

Q. 14. Which Part of the Constitution contains the Directive Principles of State Policy?

(a) Part III (b) Part IV (c) Part IV-A (d) Part XI

Q. 15. The single largest source of the provisions of the Indian Constitution is

(a) the Government of India Act, 1935 (b) the Constitution of the United States (c) the Government of India Act, 1919 (d) the Constitution of Ireland

9.2 Level 2 - Understanding

Q. 16. The EPF & MP Act, 1952 frames how many schemes, and what does this make the Act?

(a) Two schemes; a consolidating Act (b) Three schemes; an enabling or umbrella Act (c) Three schemes; a codifying Act (d) Four schemes; a self-contained Act

Q. 17. A Rule framed under an Act goes beyond the power the Act conferred. The Rule is

(a) valid, because the Ministry framed it (b) valid until Parliament repeals it (c) void as ultra vires the parent Act (d) valid only in States that adopt it

Q. 18. The four Labour Codes were passed in 2019 and 2020 but came into force on 21 November 2025. This illustrates the distinction between

(a) a Bill and an Act (b) an Act being passed and being brought into force (c) a Section and a Rule (d) delegated and primary legislation

Q. 19. An APFC issues notice to an employer, hears him, examines wage records and passes a reasoned and appealable order determining dues. This function is best described as

(a) purely executive (b) legislative (c) quasi-judicial (d) advisory

Q. 20. Article 1 describes India as a "Union of States" rather than a "Federation" because

(a) India has only a single citizenship (b) the Union is not the result of an agreement among States and no State may secede (c) residuary powers rest with the Union (d) the Governor is appointed by the Centre

Q. 21. Which one of the following is not a federal feature of the Indian Constitution?

(a) Division of powers between the Union and the States (b) A written Constitution (c) Single citizenship (d) An independent judiciary to interpret the division of powers

Q. 22. Residuary powers of legislation under the Constitution of India rest with

(a) the States, following the American model (b) Parliament, following the Canadian model (c) Parliament, following the Australian model (d) the States, following the Canadian model

Q. 23. Under Article 254, where a State law is repugnant to a Central law on a Concurrent subject, the State law

(a) prevails within that State in all circumstances (b) is void to the extent of the repugnancy, unless it was reserved for and received the President's assent (c) is void in its entirety without exception (d) prevails if it was enacted later in time

Q. 24. An amendment to the Seventh Schedule requires

(a) a simple majority in both Houses (b) a special majority in both Houses only (c) a special majority in both Houses plus ratification by the legislatures of not less than one-half of the States (d) ratification by two-thirds of the States

Q. 25. In respect of a Constitution Amendment Bill passed under Article 368, the President

(a) may withhold assent (b) may return it for reconsideration once (c) must give assent (d) may refer it to the Supreme Court before assenting

Q. 26. Which one of the following statements about the Preamble is correct?

(a) It is enforceable in a court of law (b) It is not part of the Constitution (c) It is part of the Constitution but is not justiciable (d) It cannot be amended at all

Q. 27. "Secular" in the Indian constitutional sense means

(a) the State is hostile to all religions (b) there is a complete wall of separation between State and religion (c) there is no State religion and all faiths receive equal treatment, the State being free to regulate or assist without discrimination (d) the State recognises the religion of the majority

Q. 28. The word in the Preamble that most clearly distinguishes India from the United Kingdom is

(a) Sovereign (b) Democratic (c) Republic (d) Socialist

Q. 29. Social security and social insurance appear at which place in the Seventh Schedule?

(a) Entry 22 of the Concurrent List (b) Entry 23 of the Concurrent List (c) Entry 24 of the Concurrent List (d) Entry 55 of the Union List

Q. 30. Provident funds, employers' liability, maternity benefit and old age pensions are covered by

(a) Entry 22 of the Concurrent List (b) Entry 23 of the Concurrent List (c) Entry 24 of the Concurrent List (d) Entry 36 of the Concurrent List

9.3 Level 3 - Recruitment Test standard

Q. 31. Which one of the following statements about the Preamble to the Constitution of India is not correct?

(a) It has been amended only once, by the 42nd Amendment Act, 1976 (b) The words "Socialist", "Secular" and "Integrity" were added by that amendment (c) The words "Democratic" and "Republic" were also added by that amendment (d) It bears the date 26 November 1949

Q. 32. Consider the following statements:

- 1 In *Berubari Union* (1960) the Supreme Court held that the Preamble is not part of the Constitution.
- 2 In *Kesavananda Bharati* (1973) the Supreme Court held that the Preamble is part of the Constitution and may be amended, subject to the basic structure.

Which of the above statements is or are correct?

(a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Q. 33. Match List-I with List-II and select the correct answer using the code given below:

List-I (Case)	List-II (Contribution)
A. <i>Golaknath</i> (1967)	1. Fixed the Ninth Schedule cut-off date
B. <i>Kesavananda Bharati</i> (1973)	2. Held Parliament cannot abridge Fundamental Rights at all
C. <i>Minerva Mills</i> (1980)	3. Propounded the basic structure doctrine
D. <i>Waman Rao</i> (1981)	4. Struck down the attempt to make the amending power unlimited

(a) A-2 B-3 C-4 D-1 (b) A-3 B-2 C-1 D-4 (c) A-2 B-4 C-3 D-1 (d) A-3 B-4 C-2 D-1

Q. 34. Which one of the following has not been recognised as part of the basic structure of the Constitution?

(a) Judicial review (b) Free and fair elections (c) The right to property as a fundamental right (d) The limited amending power of Parliament

Q. 35. Arrange the following in correct chronological sequence:

- 1 The basic structure doctrine is propounded
- 2 Parliament expressly declares that its amending power extends to Fundamental Rights
- 3 The Supreme Court holds Fundamental Rights to be unamendable
- 4 The basic structure doctrine is first applied to strike down a constitutional amendment

(a) 3, 2, 1, 4 (b) 2, 3, 1, 4 (c) 3, 1, 2, 4 (d) 1, 3, 2, 4

Q. 36. Which one of the following pairs is not correctly matched?

(a) Suspension of Fundamental Rights during emergency - Germany (Weimar) (b) Nomination of members to the Rajya Sabha - Ireland (c) Freedom of trade, commerce and intercourse - Canada (d) Procedure established by law - Japan

Q. 37. Consider the following statements about the legislative basis of labour legislation in India:

- 1 Trade unions and industrial and labour disputes fall under Entry 22 of the Concurrent List.
- 2 Because labour is a Concurrent subject, both Parliament and State legislatures are competent to legislate on it.
- 3 Regulation of labour and safety in mines and oilfields is a Concurrent subject.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. Which one of the following amendments does not require ratification by the State legislatures?

(a) A change in the distribution of legislative powers between the Union and the States (b) A change in the manner of election of the President (c) A change in the provisions of Article 368 itself (d) The creation or abolition of a State Legislative Council

Q. 39. Which one of the following statements is correct?

(a) The Eleventh Schedule lists 18 subjects and was added by the 74th Amendment (b) The Twelfth Schedule lists 29 subjects and was added by the 73rd Amendment (c) The Eleventh Schedule lists 29 subjects and was added by the 73rd Amendment (d) Both Schedules were added by the 42nd Amendment

Q. 40. A State legislature enacts a law on a Concurrent subject which conflicts with an existing Central law. The State law had been reserved for the consideration of the President and received his assent. Subsequently Parliament amends the Central law on the same subject. Which one of the following is correct?

(a) The State law continues to prevail in that State notwithstanding the later Central law (b) The State law prevailed until the later Central law, which now prevails (c) The State law was void from the beginning (d) The State law prevails throughout India

10. Answers and Explanations

Read the explanation for every question, including the ones you got right - the explanations teach why the wrong options are wrong, which is where the real learning is.

10.1 Level 1

Q	Ans	Explanation
1	c	Cabinet Mission Plan, 1946. Cripps (1942) offered a post-war constitution-making body but was rejected; the Mountbatten Plan (1947) concerned partition , not the Assembly's constitution
2	b	26 November 1949 - adopted and enacted. Distinguish sharply from commencement
3	d	26 January 1950 - commencement. Option (a) is adoption; (c) is the 1930 Purna Swaraj pledge that explains the choice of date
4	a	2 years, 11 months, 18 days
5	c	Sachchidananda Sinha , as the oldest member, presided as temporary chairman. Rajendra Prasad became permanent Chairman on 11 December 1946
6	b	Sir B. N. Rau was Constitutional Adviser. Ambedkar chaired the Drafting Committee - a different role, and the commonest distractor pair in this chapter
7	c	Nehru , on 13 December 1946, adopted 22 January 1947
8	c	Three - Socialist, Secular, Integrity
9	b	Ireland. The USSR gave Fundamental Duties . Learn the trio: Rights from the USA , Principles from Ireland , Duties from the USSR
10	c	Soviet Union. See above
11	b	Australia. Canada gave the strong Centre and residuary powers . Remember: Canada gave the strong Centre, Australia gave the shared list
12	c	Seventh Schedule , read with Article 246
13	b	Tenth Schedule , inserted by the 52nd Amendment, 1985
14	b	Part IV , Articles 36 to 51. Part III is Rights; Part IV-A is Duties
15	a	The Government of India Act, 1935 - roughly two-thirds of the Constitution derives from it

10.2 Level 2

Q	Ans	Explanation
16	b	Three schemes - EPF, EPS 1995 , EDLI 1976 - which makes the 1952 Act an enabling or umbrella Act. This is why replacing a Scheme does not change the parent Act
17	c	Void as ultra vires. A lower rung of the ladder can never exceed the authority the higher rung granted. Neither ministerial origin nor the passage of time cures it
18	b	Passed versus in force. The Codes existed as law from 2020 but had no operation until commencement on 21 November 2025, with final Central Rules on 8 May 2026
19	c	Quasi-judicial - the Executive acting judicially: notice, hearing, evidence, reasoned order, appeal. This is the Section 7A function
20	b	Ambedkar's two stated reasons - no agreement among States and no right to secede . (a), (c) and (d) are all true of India but are not the reason the word was chosen

Q	Ans	Explanation
21	c	Single citizenship is a unitary feature. A classic federation such as the USA has dual citizenship. The other three are federal features
22	b	Parliament , under Article 248 , on the Canadian model. The USA leaves residuary powers with the States - which is why (a) names the wrong model as well as the wrong body
23	b	Central law prevails and the State law is void to the extent of the repugnancy - unless it was reserved for and received the President's assent . (d) is wrong: later enactment by a State does not cure repugnancy
24	c	The Seventh Schedule is a federal provision, so it needs special majority plus ratification by not less than one-half of the States. (d) misstates the fraction - a very common error
25	c	He must assent. The 24th Amendment, 1971 made this explicit. Contrast Article 111 for ordinary Bills, where he may withhold or return
26	c	It is part of the Constitution (<i>Kesavananda</i>) but is not justiciable - you cannot sue on it alone. It can be amended, subject to the basic structure, so (d) is wrong
27	c	Equal treatment, no State religion, regulation and assistance permitted without discrimination . (b) describes the American model, which India deliberately did not adopt
28	c	Republic - an elected, non-hereditary Head of State. The UK is sovereign and democratic but has a hereditary monarch
29	b	Entry 23 - social security and social insurance, employment and unemployment. This is the basis of the ESI Act 1948 and the Code on Social Security 2020
30	c	Entry 24 - welfare of labour, including provident funds, employers' liability, workmen's compensation, invalidity and old age pensions and maternity benefit. The constitutional basis of the post you are applying for

10.3 Level 3

Q	Ans	Explanation
31	c	"Democratic" and "Republic" were in the original Preamble. Only Socialist, Secular and Integrity were added in 1976. The other three statements are all correct, which is what makes this the "not correct" answer
32	c	Both correct. <i>Berubari</i> said not part; <i>Kesavananda</i> reversed it. The reversal, not either holding alone, is the examinable point
33	a	A-2 Golaknath held Fundamental Rights unamendable; B-3 Kesavananda propounded basic structure; C-4 Minerva Mills struck down the attempt to make the amending power unlimited; D-1 Waman Rao fixed the cut-off of 24 April 1973
34	c	The right to property was removed as a Fundamental Right by the 44th Amendment, 1978 and is now only a legal right under Article 300A . A right Parliament was able to delete cannot be part of the basic structure. The other three have all been expressly recognised
35	a	3, 2, 1, 4 - Golaknath 1967 (Rights unamendable), 24th Amendment 1971 (Parliament asserts its power), <i>Kesavananda 1973</i> (basic structure), <i>Indira Gandhi v Raj Narain 1975</i> (first application to strike down an amendment)
36	c	Freedom of trade, commerce and intercourse came from AUSTRALIA, not Canada. The other three pairs are correctly matched. Note the exam's favourite confusion: Canada gave the strong Centre and residuary powers; Australia gave the Concurrent List, trade and commerce freedom, and the joint sitting
37	a	1 and 2 only. Statement 3 is wrong - regulation of labour and safety in mines and oilfields is Entry 55 of the UNION List , not Concurrent. This is exactly why the Mines Act, 1952 is central legislation, and it is a distinction worth carrying into Module 2

Q	Ans	Explanation
38	d	Creation or abolition of a State Legislative Council is done by simple majority under Article 169, outside Article 368 altogether. The other three are federal provisions requiring State ratification
39	c	Eleventh Schedule = 29 subjects, 73rd Amendment (Panchayats). Twelfth Schedule = 18 subjects, 74th Amendment (Municipalities). Options (a) and (b) swap both the numbers and the amendments
40	b	The State law prevailed by virtue of the President's assent, but Parliament retains the power to legislate afresh on the same Concurrent subject, and a subsequent Central law prevails over the State law. This is the point most candidates miss - Presidential assent gives the State law protection against the existing Central law, not permanent immunity

11. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.1 - READ THIS BEFORE EVERY STUDY SESSION ON POLITY

THE LADDER Constitution → Act (Sections) → Rules, Schemes, Regulations, Notifications → bye-laws. **Lower can never contradict higher; if it does, it is ultra vires.** EPF & MP Act **1952** is an **enabling** Act framing **three** schemes - EPF, EPS **1995**, EDLI **1976**

PASSED vs IN FORCE Labour Codes passed **2019-2020**, in force **21 Nov 2025**, final Central Rules **8 May 2026**. Constitution **adopted 26 Nov 1949**, **commenced 26 Jan 1950**, took **2y 11m 18d**
CONSTITUENT ASSEMBLY Cabinet Mission Plan **1946** · **indirectly** elected by provincial assemblies · **389** → **299** after Partition · first meeting **9 Dec 1946** under **Sachchidananda Sinha** · permanent Chairman **Rajendra Prasad** · Drafting Committee **Ambedkar** · Constitutional Adviser **B. N. Rau** · Objectives Resolution **Nehru**

WHY 26 JANUARY Purna Swaraj day, **26 Jan 1930**, after the **Lahore session Dec 1929**

ARCHITECTURE about **448** Articles · **25** Parts · **12** Schedules. **III** Rights 12-35 · **IV** DPSP 36-51 · **IV-A** Duties 51A · **XI** Union-State 245-263 · **XX** Amendment 368

SCHEDULES **7th** three Lists · **8th** languages 22 · **9th** immunised laws · **10th** anti-defection · **11th** Panchayats **29** (73rd) · **12th** Municipalities **18** (74th)

PREAMBLE Sovereign Socialist Secular Democratic Republic · **42nd Amendment 1976 added THREE** - Socialist, Secular, **Integrity** · amended **once only** · **part of** the Constitution (*Kesavananda* reversing *Berubari*) · **not justiciable** · **Republic** = elected Head of State, the word separating India from the **UK**

SOURCES Gol Act **1935** biggest · Rights **USA** · DPSP **Ireland** · Duties **USSR** · Concurrent List + trade freedom + joint sitting **Australia** · strong Centre + residuary **Canada** · emergency FR suspension **Germany** · Liberty Equality Fraternity **France** · Justice **USSR**

AMENDMENT three routes · special majority = **2/3 present and voting + majority of total membership** · federal provisions also need **one-half of States, no time limit** · President **must** assent (24th Amendment 1971)

BASIC STRUCTURE STORY *Shankari Prasad* 1951 yes → *Sajjan Singh* 1965 yes → **Golaknath 1967 NO** → **24th Amdt 1971** Parliament asserts → **Kesavananda 1973, 7:6 of 13** basic structure born → **Indira Gandhi v Raj Narain 1975** first application → **Minerva Mills 1980** amending power not unlimited → **Waman Rao 1981** cut-off **24 April 1973** → *Coelho* 2007 confirms. **The Constitution is amendable but not destructible. Right to property is NOT basic structure** - deleted by the **44th Amendment 1978**, now **Art 300A**

FEDERALISM **Art 1 "Union of States"** - no agreement, no secession · **Art 246 + 7th Schedule** · Union **97** State **66** Concurrent **47** as originally enacted · residuary **Art 248** with **Parliament** · **Art 254** repugnancy, State law saved only by **President's assent**, and only against the **existing** Central law

YOUR ENTRIES **22** trade unions and disputes · **23** social security and social insurance · **24** welfare of labour - **provident funds**, employers' liability, old age pensions, maternity benefit · **36** factories · **Union List 55** mines and oilfields

12. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.1 - PUT THIS WHERE YOU CAN SEE IT

LADDER Constitution > Act > Rule/Scheme > bye-law · **ultra vires** runs downward

THREE DATES adopted **26 Nov 1949** · commenced **26 Jan 1950** · **2y 11m 18d**

FOUR NAMES Sinha temporary · **Prasad** permanent · **Ambedkar** Drafting · **Rau** Adviser

42nd 1976 Socialist · Secular · **Integrity** = **THREE** words, **one** amendment

BORROWING TRIO Rights **USA** · DPSP **Ireland** · Duties **USSR**

CANADA vs AUSTRALIA Canada = strong Centre + residuary · Australia = Concurrent List + trade + joint sitting

KESAVANANDA 1973 · **7:6 of 13** · amendable but **not destructible** · cut-off **24 Apr 1973**

NOT BASIC STRUCTURE right to **property** · deleted 44th Amdt **1978**, now **Art 300A**

AMENDMENT 2/3 present and voting + majority of total membership · federal also **1/2 of States** · President **must** assent

SCHEDULE PAIRS 11th = **29** = **73rd** = **Panchayats** · 12th = **18** = **74th** = **Municipalities**

THE ENTRY THAT MADE YOUR JOB Concurrent List Entry 24 - welfare of labour including **provident funds**. Entry **23** social security · Entry **22** trade unions · **mines** = **Union List 55**

ONE SENTENCE FOR THE INTERVIEW The office of Assistant Provident Fund Commissioner exists because **Entry 24 of the Concurrent List** empowered Parliament to legislate on provident funds, Parliament enacted the **EPF & MP Act 1952** as an enabling Act, the Act framed **three schemes**, and the **Section 7A** power to determine dues is a **quasi-judicial** function whose limits are set by **Articles 14 and 21** and reviewable under **Article 226**

ACTION · NEXT IN THE FOUNDATION TRACK

Chapter F1.2 - The Union, its Territory and Citizenship, then **F1.3 - Fundamental Rights** (the longest Foundation chapter, and the one containing Article 12 and the holding that **EPFO is "State"**). Before you move on: can you state, without looking, the **ladder**, the **three dates**, the **three added words**, the **Kesavananda sentence**, and **Entry 24**? If any one of those is missing, re-read that section rather than continuing. The Foundation track only works if each chapter is solid before the next begins.